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I. Deposition Questions for Debra Ward Lund (CEO)

A. Foundational Questions & Knowledge of Procedures

1. Please state your full name and identify every title you held from November 2022 through June 2023, including any acting roles, and state who you reported to in each role.
2. Please list all training you have completed concerning EEO principles, anti-retaliation, EEOC Management Directive 110, FMLA administration, hostile work environment response, workplace violence prevention, and federal records retention.
3. In your affidavit, you state your role as CEO is "unique" and that you "cannot be part of the investigation" in a personnel matter. Could you elaborate on why you believe it is critical for you to remain separate from an investigation?
4. Would you agree that a key part of remaining separate is to avoid any action that could influence parties, compromise confidentiality, or taint the integrity of the process?

B. Breach of EEO Confidentiality (Turnage Complaint vs. Lee)

1. On March 3, 2023, you received an email from Mr. Turnage constituting a formal EEO complaint of sexual harassment against Ms. Candace Lee. What was the first action you took upon receiving that email?
2. Was your first action to contact the EEO office or an ER/LR specialist to ensure proper procedure was followed?
3. Your affidavit states you went "immediately" to Ms. Lee's office. How do you reconcile that action with your testimony that you "cannot be part of the investigation"?

4. Did you consider that by immediately informing the subject of a harassment complaint, you were breaching the confidentiality of the EEO process?
5. Were you aware of the anti-retaliation provisions of Title VII of the Civil Rights Act, which prohibit taking actions that could dissuade an employee from participating in the EEO process?
6. Before you went to Ms. Lee's office, did you consult with agency legal counsel or the EEO office about the potential legal ramifications of immediately notifying the subject of a harassment complaint? If not, why not?
7. Your affidavit states you went to Ms. Lee's office to "see if she would be ok." Was your primary duty at that moment to manage the emotional state of the manager accused of sexual harassment, or was it to protect the integrity of the federal EEO process and comply with federal law?
8. What specific agency policy or EEO guidance did you rely on that instructs a senior manager to immediately inform and comfort the subject of a sexual harassment complaint?

C. The March 21st Incident: Administrative Leave & Detail

1. Let's turn to the events of March 21, 2023. You made the decision to place Mr. Turnage on administrative leave and have him escorted out by security. Is that correct?
2. On what specific evidence did you base this decision? Was it based solely on the verbal report from Ms. Brandi Benjamin?
3. Were you aware at that time that Ms. Benjamin and the subject of her allegation, Ms. Tonie Greve, were friends?

4. Were you aware that the sole witness Ms. Benjamin identified, Ms. Ashley Krumenacker, did not corroborate the allegation? If so, when did you become aware of this?
5. Why did you proceed with the administrative leave and security escort before verifying the allegation with the only neutral witness?
6. Given that you knew Mr. Turnage had recently engaged in protected EEO activity, did you consult with legal counsel to assess the risk of a retaliation claim before taking this significant adverse action based on an uncorroborated report? If not, why not?
7. Who was the deciding official for placing Mr. Turnage on the 120-day detail? What specific business necessity or risk mitigation was that detail intended to address?

C.1. Follow-up Questions if Witness Answers C7 She was the Deciding Official

1. **Lock in the Admission:** So, just to be perfectly clear for the record, you personally made the final decision to remove Mr. Turnage from his Supervisory Nurse position and place him on the 120-day detail as a Policy Officer?
2. **Confront with Prior Inconsistent Statement:** Thank you. Ms. Ward Lund, I'd now like to direct your attention back to your sworn affidavit in the Report of Investigation, on page 98. I want to read your words back to you. You stated, and I quote: 'My role as the CEO is unique because I am not the proposing or deciding official. If the matter is grieved, I have to respond, so I cannot be part of the investigation.' Did I read that correctly? Is that an accurate reflection of your testimony in the official investigation?
3. **Force Explanation of Contradiction:** Ms. Ward Lund, you have just testified under oath that you *were* the deciding official for the 120-day detail. A moment ago, you confirmed your previous sworn testimony that you are *not* the deciding official in

your unique role as CEO. Both of these statements cannot be true. Can you please explain this direct contradiction to the court?

4. Which testimony is the truth, Ms. Ward Lund? The one where you claimed you aren't a deciding official, or the one you are giving today where you admit you were?
5. You testified your role was 'unique' precisely *because* you don't act as a deciding official. By your own definition, did you violate the proper role of the CEO when you made the decision to detail Mr. Turnage?
6. Was your statement in the Report of Investigation an attempt to mislead the EEO investigator about the extent of your personal involvement in the actions taken against Mr. Turnage?
7. Why did you feel it was necessary in your affidavit to distance yourself from being a 'deciding official' if you were, in fact, acting as one?

D. Disregarding Contradictory and Exculpatory Evidence

1. You testified that Mr. Turnage had "temper issues." What specific, firsthand observations led you to that conclusion?
2. On April 4, 2023, you received an email from a 15-year veteran employee, Ms. Nash, stating she had "never seen him behave in any kind of unprofessional way" and that he was able to "calm the situation" with rude patients. How do you reconcile her direct observations with your assessment of his "temper issues"?
3. Did you take any steps to investigate the claims in Ms. Nash's email, such as interviewing her or other staff members about Mr. Turnage's leadership?
4. You testified that Mr. Turnage had 'temper issues.' Is it true that you were the one who placed Mr. Turnage in charge of the Non-Violent Crisis Intervention training program for the entire facility?

5. Please describe what that program entails. Does it teach hospital staff techniques for verbal de-escalation and managing agitated individuals?
6. To be clear, is it your testimony that you selected an employee whom you believed to have ‘temper issues’ to be responsible for training all hospital staff on how to de-escalate crises and manage aggression non-violently?
7. Your email response to Ms. Nash characterized her detailed feedback as "kind words" and immediately pivoted to praising Ms. Benjamin. Why did you dismiss her substantive feedback in this way?
8. You copied Ms. Benjamin—the accuser—on your reply to Ms. Nash, who was supporting Mr. Turnage. Did you consider that this action could be perceived as intimidating and create a chilling effect, warning other employees not to support Mr. Turnage? What agency policy supports copying an accuser on a response to a supporting witness?
9. This exculpatory email from Ms. Nash directly contradicts the justification for placing Mr. Turnage on a punitive detail. Can you explain why this email was not included as evidence in the agency’s Report of Investigation for this matter? Who made the decision to exclude it?

E. Disparate Treatment of Complaints (Turnage vs. Greve)

1. You were aware, were you not, that in December 2022, five employees, including a supervisor, filed formal hostile work environment complaints against Ms. Tonie Greve?
2. What steps did you, as the Acting CEO, take to ensure that these five formal complaints were thoroughly and impartially investigated?
3. To your knowledge, was Ms. Greve ever placed on administrative leave, detailed out of her position, or escorted from the facility while these complaints were pending?

4. Was Ms. Greve ever disciplined as a result of those five complaints?
5. Can you explain why the agency took no apparent action in response to five separate, formal complaints against Ms. Greve, yet took immediate and severe action—including involving law enforcement—against Mr. Turnage based on a single, uncorroborated allegation made by Ms. Greve's friend?
6. How do you reconcile this disparity in treatment with the agency's EEO policy and your responsibility as CEO to ensure fair and equal treatment for all employees?

F. Involvement of Law Enforcement

1. Was the Phoenix Police Department contacted on March 21, 2023, regarding the allegation against Mr. Turnage?
2. Who made the decision to contact the police? What specific threat-assessment policy or risk matrix authorized this action for an uncorroborated verbal allegation?
3. Provide the names of any other employees in the past three years against whom there were uncorroborated verbal allegations. In how many of those instances were the police called?
4. Do you recall telling Mr. Turnage after this incident that the Phoenix Police were *never* called?
5. If the police were in fact called, why did you tell Mr. Turnage that they were not?

G. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?

4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Are you aware that under the Whistleblower Protection Act, 5 U.S.C. § 2302, a 'detail' or 'reassignment' is defined as a 'personnel action'? Did you consider, prior to detailing Mr. Turnage, that taking such a significant personnel action almost immediately after he engaged in protected EEO activity could constitute a Prohibited Personnel Practice?
9. Before taking any of the actions against Mr. Turnage in March and April 2023, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

H. Compliance with Federal Law on Investigative Leave Extensions

1. Federal law, specifically the Administrative Leave Act of 2016, codified at 5 U.S.C. § 6329b, governs the use of administrative leave for federal employees during an investigation. Were you aware of this specific federal law when you placed Mr. Turnage on administrative/investigative leave?
2. Given that Mr. Turnage was placed on paid leave pending an investigation by his supervisors, why was he placed on general 'administrative leave' under 5 U.S.C. § 6329a, and not the specific 'Investigative Leave' mandated by 5 U.S.C. § 6329b and your agency's own policy, HHS Policy 630-2? Were you not aware of this distinction?

3. This statute requires that after an initial period, an agency must provide the employee with a written explanation of the reasons for any extension of the leave. Did you provide Mr. Turnage with such a written explanation for why his investigative leave was being extended?
4. The law also requires the agency to maintain a record of the reasons for the extension. Was a formal written record created documenting the specific reasons for extending Mr. Turnage's leave beyond the initial period?
5. Before extending the leave, did you consult with legal counsel or ER/LR to ensure you were in full compliance with the procedural requirements of 5 U.S.C. § 6329b?
6. If no written explanation was provided to the employee or maintained in the record, please explain why the agency failed to comply with this federal law.

II. Deposition Questions for Candace Lee (Chief Nursing Officer)

A. Background and Supervisory Role

1. Please state your full name and your position at PIMC from March 2022 to March 2023.
2. During this period, you were Mr. Turnage's second-line supervisor, correct?

B. The Sexual Harassment Allegation

1. Please describe the incident in November 2022 when you gave Mr. Turnage a hug. What led up to this physical contact?
2. You testified he "agreed" to the hug. What were your exact words when asking for his consent, and what were his exact words in response?
3. Did it occur to you that a supervisor initiating a hug with a subordinate in the workplace could be perceived as inappropriate?
4. In December 2022, you gave Mr. Turnage a holiday card in which you wrote, "P.S. I still don't regret that hug!" Why did you feel it was necessary to add that note?
5. Were you aware at the time that this note could reinforce the perception of an unwelcome physical advance?
6. When did you first learn that Mr. Turnage had filed a sexual harassment complaint against you? Who informed you, and what was your immediate reaction?
7. After being informed by Ms. Ward Lund, were you provided any guidance from legal counsel, EEO, or ER/LR on how to conduct yourself to avoid any appearance of retaliation? Did you discuss the complaint with Ms. Benjamin, Mr. White, or any other employee?

C. The PMAP Score (Claim 2)

1. You were the reviewing official for Mr. Turnage's 2022 PMAP, which was rated by Mr. Jason White, correct?
2. You and Mr. White both admit to "unintentionally" failing to complete an entire section of his PMAP. Can you explain how two levels of management review missed an entire required section of a standard performance appraisal?
3. HHS Instruction 430-1 requires Rating and Reviewing Officials to 'Ensure that plans meet all requirements as outlined in this policy.' How do you reconcile this requirement with your admission that you approved a PMAP for Mr. Turnage that was missing an entire required section? Would you agree that this constitutes a failure to follow agency policy?
4. In your affidavit, you stated that after Mr. Turnage appealed, his "initial score did not change." However, Ms. Ward Lund and Mr. White both testified the score was raised to a 3.5. Can you explain this direct contradiction in your testimony? Which is it?
5. At the time you reviewed and approved Mr. Turnage's PMAP, were you aware that federal law—specifically Title VII—prohibits retaliating against an employee for reporting harassment?
6. Did you consult with HR, EEO, or legal counsel before finalizing the PMAP score for an employee who had accused you of harassment to ensure the process was fair and free from any appearance of retaliation? If not, why not?

D. Handling of Hostile Work Environment Complaints Against Ms. Greve

1. As the Chief Nursing Officer, were you aware that five of your subordinate nursing staff, including a Supervisory Nurse, filed formal hostile work environment complaints against Ms. Tonie Greve in December 2022?
2. What specific actions did you take, in your capacity as CNO, to address these serious allegations and ensure the well-being of the nursing staff?

3. Did you recommend or initiate an investigation into Ms. Greve's conduct?
4. Did you recommend that Ms. Greve be temporarily detailed or moved while the complaints were being adjudicated to mitigate the ongoing hostile environment?
5. Why did these complaints, which came from multiple sources, result in no discernible management action to protect the employees who filed them?

E. Handling of Internal Complaints (Benjamin Incident)

1. Are you aware of an incident in the Employee Health unit where Ms. Brandi Benjamin allegedly confronted Mr. Turnage and demanded he leave because Ms. Tonie Greve was uncomfortable?
2. Did Mr. Turnage file a formal complaint with you regarding Ms. Benjamin's conduct in that incident?
3. What specific actions did you take after receiving that complaint? Did you launch a formal inquiry or investigation?
4. If no investigation was conducted, please explain why not. What was the disposition of that complaint?

F. The March 21st Incident (Administrative Leave)

1. In your affidavit, you state you were "not aware of these events" and had been removed from Mr. Turnage's supervisory chain. Are you testifying that as Chief Nursing Officer, you were completely unaware that one of your subordinate Supervisory Nurses was accused of a violent threat, placed on leave, and escorted from the building by security?
2. When did you first learn of these events, and who informed you?
3. Did you participate in any meetings or discussions regarding the decision to place Mr. Turnage on administrative leave or the subsequent 120-day detail?

G. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?
4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Before making any decisions related to Mr. Turnage after he filed his complaint against you, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

III. Deposition Questions for Brandi Benjamin (First-Line Supervisor)

A. Background and Relationship with Involved Parties

1. Please state your full name and your position at PIMC in January through April of 2023.
2. Please describe your relationship with Ms. Tonie Greve. Would you characterize it as a personal friendship or simply a professional one?
3. How often do you socialize with Ms. Greve, either during or outside of work hours?
4. You were aware that in December 2022, Mr. Turnage and four of his nurses filed a formal hostile work environment complaint naming your friend, Ms. Greve, as the responsible party, correct?
5. Did your friendship with Ms. Greve influence your perception of Mr. Turnage or your actions on March 21, 2023?

B. Subsequent Confrontations and Uninvestigated Complaints

1. Let's discuss an incident that occurred in September 2024 in the Employee Health unit. Do you recall a time when you confronted Mr. Turnage while he was in Employee Health for a legitimate appointment?
2. Is it true that you told him he needed to leave the area immediately because your friend, Ms. Tonie Greve, felt uncomfortable with his presence?
3. Are you aware that Mr. Turnage subsequently filed a formal complaint against you with your direct supervisor, Ms. Candace Lee, regarding this confrontation?
4. To your knowledge, was that complaint ever investigated?

C. The Alleged Threat on March 21, 2023

1. Let’s focus on the events of March 21, 2023. You allege you heard Mr. Turnage say, “get [Ms. Greve] out of my unit before I beat the fucking shit out of her.” Is that an exact quote?
2. You stated in your affidavit that Ms. Ashley Krumenacker was present and heard this comment. Is that still your testimony?
3. Ms. Krumenacker, the sole witness you identified, testified under oath that she "did not hear the comment in question." Can you explain this direct contradiction? Is it your testimony that Ms. Krumenacker is lying under oath?
4. What were your immediate actions after hearing this alleged threat? Who was the first person you reported it to, and when?
5. Let’s create a timeline for your communications on March 21st. After the alleged incident, did you speak with Ms. Debra Ward Lund? What time was that? Was it in person, by phone, or by text? What was the substance of that conversation?
6. Did you speak with Ms. Candace Lee on March 21st? What time? What was the substance of that conversation?
7. At what point did you learn that Mr. Turnage would be placed on leave and escorted out? Who informed you of that decision?
8. You testified you became aware of Mr. Turnage’s prior protected EEO activity from an email he sent you on the morning of March 21, 2023. Is it correct that you made this accusation against him just hours after learning he had engaged in protected activity?
9. Were you aware of the anti-retaliation provisions under federal law, Title VII? Before you reported this uncorroborated allegation, did you consult with HR, ER/LR, or legal counsel about the significant legal risk of being accused of retaliation, given the timing? If not, why not?

D. Handling of FMLA Paperwork

1. You testified Mr. Turnage's FMLA paperwork was incomplete on multiple occasions. Were you trained on the specific requirements of the Family and Medical Leave Act?
2. Federal regulations at 29 C.F.R. § 825.305(c) require an employer to provide *written* notice specifying what information is needed to cure an incomplete certification and give the employee at least seven days to do so. Did you ever provide Mr. Turnage with such a written notice?
3. 29 CFR § 825.305(c) requires you to provide an employee with *written notice* of any deficiency in their FMLA certification and give them seven days to cure it. You've testified you repeatedly told Mr. Turnage his paperwork was 'incomplete.' Did you ever provide him with the formal written notice required by federal law? If not, why not?
4. If not, why did you fail to follow this specific federal regulation? Did you consult with HR or legal counsel about the legally required procedure for handling FMLA certifications?
5. Mr. Turnage's FMLA request was ultimately approved on April 13, 2023. Did he provide any additional medical information between your final verbal request and the date of approval?
6. If no new information was provided, why was the paperwork you repeatedly deemed "incomplete" suddenly sufficient for approval?

E. Treatment of Other Nurses

1. Let's discuss the other four nurses who joined Mr. Turnage in the hostile work environment complaint against Ms. Greve. Please name them.
2. What is the current employment status of each of those four nurses?

3. Is it true that shortly after you took over Mr. Turnage's unit, you directed HR to rescind a promotion or new position offer that had been extended to one of those nurses, Ms. Frost? On what basis?
4. Is it true that another of those nurses, Ms. Barr, resigned and stated she was leaving because she found the work environment under your supervision to be toxic and hostile?

F. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?
4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Before making any decisions related to Mr. Turnage after learning of his EEO activity, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

IV. Deposition Questions for Jason White (Former Supervisor / "Investigator")

A. Background and PMAP Dispute

1. Please state your full name and confirm the dates you served as Mr. Turnage's first-line supervisor.
2. You were the rating official for his 2022 PMAP, correct? You testified that you and Ms. Lee "unintentionally failed to complete one section." How did this error occur?
3. You were aware that Mr. Turnage filed a grievance over this PMAP and a related sexual harassment complaint against Ms. Lee, correct?
4. In that EEO matter, you were identified as a Responsible Management Official, or RMO. Is that correct?
5. So, by March 2023, you were a named party in an active EEO dispute initiated by Mr. Turnage?

B. Appointment and Conduct as "Investigator"

1. On March 21, 2023, you were assigned to conduct an administrative investigation into the alleged threat by Mr. Turnage. Who specifically assigned you this role?
2. Were you provided a formal letter of authorization appointing you as the investigator that outlined your specific duties and responsibilities?
3. What are your qualifications or specialized training to conduct employee misconduct investigations?
4. Are you aware of the legal standards for impartiality in federal administrative investigations, as outlined in EEOC's Management Directive 110?
5. HHS Instruction 752 requires an 'objective consideration of all relevant facts' in an inquiry. How could you provide objective consideration when you were investigating

an employee who had just filed a sexual harassment complaint against your direct supervisor, Ms. Lee? Did you not perceive this as a clear conflict of interest?

6. When you were assigned this role, did you inform your superiors that you were an RMO in Mr. Turnage's active EEO complaint and therefore had a clear conflict of interest?
7. Did you consult with legal counsel or the EEO office about whether it was legally permissible for you to investigate an employee who had named you as an RMO in an active EEO complaint? If not, why not?
8. Did you produce a written report or a summary of findings for your investigation? If so, to whom did you provide it? If not, why not? Were you instructed not to complete a report?

C. Witness Tampering Allegations

1. You interviewed Ms. Ashley Krumenacker as the sole witness, correct?
2. In your affidavit, you deny tampering with her statement and claim the statement you prepared was "based on the facts as she saw them." Is that still your testimony?
3. Ms. Krumenacker testified under oath that you "wanted her to sign a statement…which did not reflect what she had told him." She further testified you were "trying to get her to agree" with Ms. Benjamin's version of events. Is Ms. Krumenacker, a commissioned officer, lying under oath?
4. Did you receive an email from Ms. Krumenacker on March 22, 2023, stating, "The statement you have drafted does not accurately reflect our conversation nor what I witnessed yesterday"?
5. Are you aware that under 5 U.S.C. § 2302(b)(4), it is a Prohibited Personnel Practice to 'deceive or willfully obstruct any person' in a matter related to their employment

rights? How do you explain your attempt to have Ms. Krumenacker sign a statement she explicitly told you was inaccurate in light of this federal statute?

6. Are you aware of federal laws prohibiting obstruction of an investigation or tampering with a witness? After being put on notice in writing that your draft statement was inaccurate, did you consult with legal counsel on how to proceed? What steps did you take?

D. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?
4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Before making any decisions related to Mr. Turnage after he identified you as an RMO, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

V. Deposition Questions for Ashley Krumenacker (Neutral Witness)

1. Please state your full name and your position at PIMC in March 2023.
2. Please describe the events in Mr. Turnage's office on March 21, 2023. Who was present, and what was the topic of conversation?
3. Ms. Brandi Benjamin testified that she heard Mr. Turnage say, in your presence, "get [Ms. Greve] out of my unit before I beat the fucking shit out of her." Did you hear Mr. Turnage make that statement or any statement similar to it?
4. To be perfectly clear, are you certain you did not hear that comment?
5. You were later interviewed by Mr. Jason White. Please describe that interaction.
6. Did Mr. White present you with a pre-written statement to sign? Did that statement accurately reflect what you had told him and what you had witnessed?
7. In your sworn affidavit, you stated Mr. White "was trying to get her to agree with the fact that Complainant had allegedly made the comment." Please describe exactly what he said or did that gave you this impression.
8. Did you feel pressured by Mr. White to change your account or agree with a version of events you knew to be untrue?
9. Did you inform Mr. White, either verbally or in writing, that his draft statement was inaccurate? What was his response?

VI. Deposition Questions for Tonie Greve (Nurse)

1. Please state your full name and your position at PIMC from December 2022 through April 2023.
2. Please describe your professional relationship with Ms. Brandi Benjamin. Would you describe her as a personal friend?
3. Are you aware that in December 2022, five of your colleagues, including your supervisor Mr. Turnage, filed formal hostile work environment complaints against you?
4. Were you ever formally investigated or disciplined as a result of those five complaints?
5. To your knowledge, had you filed EEO complaints against every one of your direct supervisors at PIMC prior to Mr. Turnage supervising you?
6. What was your understanding of the events of March 21, 2023, that led to Mr. Turnage being removed from the facility? When and how did you learn about the alleged threat against you?
7. Did you have any discussions with Ms. Benjamin about Mr. Turnage on or before March 21, 2023? If so, what was the substance of those discussions?

VII. Deposition Questions for Dr. McCabe (Detail Supervisor)

1. Please state your full name and your role at PIMC in 2023.
2. Mr. Turnage was placed on a 120-day detail under your direct supervision, correct? What were you told about the reason for this detail?
3. During the entire 120-day period you supervised him, please describe his work performance, professionalism, and temperament.
4. Ms. Debra Ward Lund testified that Mr. Turnage had "temper issues." Did you ever witness him display any temper issues, raise his voice inappropriately, or act unprofessionally in any way?
5. Based on your direct, personal supervision of him, did you find any evidence to support the allegation that he had temper issues?
6. Do you recall a conversation with Ms. Ward Lund in which she said of Mr. Turnage, "Yes he is [nice] until you piss him off!"?
7. What was your reaction to that comment? Did it seem consistent or inconsistent with your own experience supervising him?
8. Did any manager ever ask you for a formal or informal assessment of Mr. Turnage's performance while he was on detail with you?
9. Based on your observations, was there any reason Mr. Turnage was unfit to return to his supervisory position after the detail ended? Were you ever consulted on that decision?

VIII. Deposition Questions for Kathy Dill (Current COO)

A. Foundational Questions & Knowledge of Case History

1. Please state your full name and your current title. When did you assume the role of Chief Operating Officer?
2. Please describe your duties and responsibilities as COO.
3. When you assumed your role, were you briefed on pending or prior EEO matters and personnel issues, including the history of EEO complaints filed by Mr. Turnage in 2023?
4. What is your understanding of the events of March 2023 that led to Mr. Turnage being placed on administrative leave and a 120-day detail?
5. Are you aware that the central allegation leading to those actions was directly contradicted by the sole, neutral witness?
6. Are you aware that Mr. Turnage has engaged in legally protected EEO activity and that any subsequent adverse actions against him could be perceived as retaliation?

B. 2025 Administrative Leave Decision

1. Let's discuss the events of June 2025. You placed Mr. Turnage on administrative leave again, correct?
2. What was the specific allegation or incident that formed the basis for this new administrative leave?
3. Who brought this allegation to your attention?
4. What specific steps did you take to investigate the allegation before placing him on leave? Did you interview any witnesses? Did you review any documents or records?
5. Who was the deciding official for this action? What specific risk were you trying to mitigate by removing him from the workplace?

6. Was a formal administrative investigation initiated? If so, who was appointed as the investigator? What steps did you take to ensure the investigator was neutral and had no conflicts of interest?

C. Unattainable Deadlines and Procedural Fairness

1. Is it correct that you directed Mr. Turnage to return all government-issued property—including his laptop, cell phone, and badge—within less than four hours of being notified of his administrative leave?
2. What was the justification for this extremely short deadline?
3. What specific agency policy or regulation governs the timeline for returning government property upon being placed on administrative leave? Please identify the policy number and section.
4. Is a four-hour return deadline standard procedure for all employees placed on administrative leave at PIMC?
5. Please provide examples of other employees who were given a similarly short deadline.
6. If this is not standard procedure, why was this specific, unattainable deadline imposed on Mr. Turnage?
7. Were you aware that such a deadline could be perceived as punitive and harassing, rather than a standard administrative procedure?

D. Breach of Confidentiality (June 2025 Investigation)

1. After placing Mr. Turnage on leave in June 2025, did you have any discussions about the pending investigation with any other managers or employees?
2. Please identify every person you spoke with regarding the substance of the investigation. For each person, what was the date of the conversation and what was discussed?

3. Are you familiar with the rules requiring that administrative investigations be kept confidential to protect the integrity of the process and prevent witness tainting?
4. Did you discuss the investigation with individuals who were not directly involved in the fact-finding process? If so, why?
5. Were you concerned that these discussions could compromise the investigation, give an appearance of improper influence, or constitute a form of gossip that would contribute to a hostile work environment for Mr. Turnage?

E. Pattern of Retaliation

1. Given your awareness of Mr. Turnage's prior EEO activity, did you consider that placing him on administrative leave again, based on what appears to be another unsubstantiated allegation, could be perceived as a continuation of the retaliatory pattern from 2023?
2. Did you consult with the EEO office or legal counsel about the potential for a claim of retaliation under Title VII before taking this action? If not, why not?
3. How does imposing an aggressive, four-hour deadline for the return of property align with the agency's stated commitment to preventing retaliation against employees who engage in the EEO process?
4. Looking at the events of 2023 and the events of 2025 together, can you explain why Mr. Turnage has been subjected to repeated administrative leaves and investigations, while other employees with multiple, corroborated complaints against them, like Ms. Greve, have faced no apparent consequences?

F. Allegations of Whistleblower Retaliation

1. You have stated that the June 2025 administrative leave was to investigate an allegation that Mr. Turnage created a hostile work environment. Is that correct?

2. What specific actions or communications by Mr. Turnage were the basis for this hostile work environment allegation?
3. Is it true that the conduct you are referencing involved Mr. Turnage reporting what he believed to be violations of law, rule, or regulation to management or an investigative body?
4. Are you familiar with the Whistleblower Protection Act (WPA) and the protections it affords to federal employees who make such disclosures?
5. Are you aware that making disclosures about potential gross mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety is considered legally protected activity?
6. Before placing him on leave, did you consult with legal counsel or review guidance from the Office of Special Counsel to determine whether the conduct you labeled as 'hostile' was in fact legally protected whistleblowing activity? If not, why not?
7. What steps did you take to distinguish between legitimate whistleblowing and conduct that creates a hostile work environment?
8. Are you aware that taking a personnel action against an employee *because* they engaged in protected whistleblowing constitutes unlawful retaliation?
9. Given that you took action against Mr. Turnage for what appears to be protected disclosures, how can you be sure your actions were not a violation of federal whistleblower laws?

G. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?

3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?
4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Before making any decisions related to Mr. Turnage, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

H. Compliance with Federal Law on Investigative Leave Extensions

1. Federal law, specifically the Administrative Leave Act of 2016, codified at 5 U.S.C. § 6329b, governs the use of administrative leave for federal employees during an investigation. Were you aware of this specific federal law when you placed Mr. Turnage on administrative/investigative leave?
2. This statute requires that after an initial period, an agency must provide the employee with a written explanation of the reasons for any extension of the leave. Did you provide Mr. Turnage with such a written explanation for why his investigative leave was being extended?
3. The law also requires the agency to maintain a record of the reasons for the extension. Was a formal written record created documenting the specific reasons for extending Mr. Turnage's leave beyond the initial period?

4. Before extending the leave, did you consult with legal counsel or ER/LR to ensure you were in full compliance with the procedural requirements of 5 U.S.C. § 6329b?
5. If no written explanation was provided to the employee or maintained in the record, please explain why the agency failed to comply with this federal law.

IX. Deposition Questions for Employee & Labor Relations (ER/LR) Representative

1. Please state your name, title, and describe your role and responsibilities for PIMC in 2023.
2. Please identify the agency policy or SOP that governs the response to an employee's alleged verbal threat. Does this policy require immediate removal pending investigation, or does it allow for other mitigating actions?
3. What is the standard procedure when an allegation is uncorroborated by the only witness?
4. What advice did ER/LR provide to Ms. Ward Lund and Ms. Benjamin regarding the March 21 allegation? Was this advice documented?
5. What is the agency's policy regarding FMLA certification? Does it require providing employees with a written notice to cure deficiencies, consistent with federal regulation? Was that policy followed here?
6. Did you advise management that under 29 CFR § 825.305(c), they were legally required to provide Mr. Turnage with a written notice to cure any deficiencies in his FMLA paperwork? If not, why not?
7. Did you advise management that placing an employee on paid leave pending an investigation requires the use of 'Investigative Leave' under 5 U.S.C. § 6329b, not general administrative leave?
8. Were you consulted on the appointment of Jason White as the investigator for the March 21st incident? If so, did you advise management that appointing a direct subordinate of an involved party, Ms. Lee, constituted a conflict of interest that would compromise the objectivity of the investigation?

9. Regarding the five hostile work environment complaints filed against Ms. Tonie Greve in December 2022, what specific advice did ER/LR provide to management?
10. Was that advice documented in writing? If so, please produce that documentation.
11. Did ER/LR advise management that failure to investigate or take action on multiple, corroborated complaints could create significant legal liability for the agency? If so, what was management's response?
12. Please provide comparator data for the last three years. How many other employees have been placed on administrative leave and escorted out by security for an uncorroborated verbal allegation?
13. Conversely, how many employees with five separate hostile work environment complaints filed against them have been allowed to remain in their position without any corrective action?
14. What is the standard procedure for appointing an investigator for an administrative inquiry? Does the policy address appointing an investigator who has a clear conflict of interest, such as being a named RMO in the subject's active EEO case?

X. Deposition Questions for IT Custodian

1. Please state your name, title, and responsibilities regarding data retention and eDiscovery for PIMC.
2. A number of incidents relevant to this case occurred in March and April of 2023. On what specific date was a litigation hold or preservation order issued for this matter?
3. Please identify all custodians (employees) and all data sources (email, Microsoft Teams chats, text messages, network drives, etc.) that were included in that hold.

4. What are the agency's default retention policies for security camera footage, particularly for the office and hallway where the March 21 incident allegedly occurred?
5. Was security camera footage from March 21, 2023, and from September 2024, covering the relevant areas, successfully preserved? If not, why not, and when was it overwritten?
6. What are the default retention policies for Microsoft Teams chats? Can you produce records of all chats, including edited or deleted messages, between Ms. Ward Lund, Ms. Benjamin, Ms. Lee, and Mr. White from March 2023?
7. What system is used for badge access logs? Please explain the retention period for those logs and confirm whether they were preserved for March 21, 2023.

XI. Deposition Questions for Security Officer(s)

1. Please state your name(s) and your position(s) at PIMC on March 21, 2023.
2. Did you escort Mr. Kevin Turnage from the PIMC facility on that day?
3. Who gave you the directive to escort him out? Was it Ms. Debra Ward Lund or someone else?
4. What reason, if any, were you given for this action? Were you told he was a threat?
5. Please describe Mr. Turnage's demeanor and behavior during the escort. Was he cooperative, agitated, aggressive, or calm?
6. Did you create an incident report or make any log entries regarding this event? If so, please describe the contents of that report.
7. Were you on duty when a call was placed to the Phoenix Police Department regarding this incident? Do you have any firsthand knowledge of who made the call or what information was relayed to the police?
8. In your experience at PIMC, how frequently are employees escorted from the facility by security? What are the typical circumstances that lead to such an action?

A. Preservation and Handling of Video Evidence

1. Were you, or was anyone in the security department, asked to review, preserve, or export any video or audio recordings from on or around March 21, 2023, related to the incident with Mr. Turnage?
2. Were you, or was anyone in the security department, asked to review, preserve, or export any video or audio recordings from on or around September 2024 related to any incidents involving Mr. Turnage?
3. If such requests were made, please describe who made them, when they were made, and what actions were taken.

4. What is your knowledge of what happened to those recordings? Were they successfully preserved and provided, or were they unavailable or overwritten?

XII. Deposition Questions for Clinton Pope (Chief Quality Officer)

A. Foundational Questions & Role at PIMC

1. Please state your full name and your official title at the Phoenix Indian Medical Center (PIMC).
2. How long have you held the position of Chief Quality Officer?
3. Please describe your primary duties and responsibilities in this role.
4. What is your role in ensuring the facility's compliance with federal laws, rules, and regulations, particularly those related to patient care and quality management?
5. Please describe the nature and extent of your professional interactions with Mr. Kevin Turnage.
6. Have you ever been Mr. Turnage's direct or indirect supervisor?
7. Please describe all training you have completed concerning the Whistleblower Protection Act (WPA), Prohibited Personnel Practices (PPPs), and the prevention of retaliation against federal employees.

B. The Hostile Work Environment (HWE) Allegation

8. The agency has asserted that you reported Mr. Turnage for creating a hostile work environment. Is that correct?
9. When did you make this report?
10. To whom, specifically, did you make this report? Was it to Ms. Debra Ward Lund, Ms. Kathy Dill, or someone else?
11. Was your report made verbally or in writing? If in writing, please produce a copy of the report.

12. The basis for this allegation is that Mr. Turnage sent emails “to a bunch of people.” Can you please identify the specific emails you are referring to?
13. Who were the recipients of these emails—the “bunch of people”?
14. What was the subject matter of these emails? Is it correct that they concerned Mr. Turnage’s belief that federal laws or regulations were being violated at PIMC?
15. What specific federal law, rule, or regulation did Mr. Turnage allege was being violated?
16. In your view, what specific language or content in those emails created a “hostile” environment?
17. Did the emails contain threats, obscenities, or personal attacks, or did they focus on identifying what Mr. Turnage believed to be procedural and legal violations?
18. Are you aware that reporting a reasonable belief of a violation of law, rule, or regulation is legally protected activity under the Whistleblower Protection Act?
19. How do you distinguish between an employee creating a hostile work environment versus an employee making a legally protected disclosure that may make management officials uncomfortable?
20. Did you consult with legal counsel or the Office of Special Counsel before characterizing Mr. Turnage’s emails—which concerned violations of federal law—as a hostile work environment?
21. Were any other employees disciplined or counseled for creating a hostile work environment in the last three years? If so, for what type of conduct?

C. Knowledge of Protected Activity and Retaliation

22. Were you aware that prior to your HWE allegation, Mr. Turnage had filed EEO complaints for retaliation and sexual harassment in 2023?

23. Were you aware that he had also reported a hostile work environment on behalf of his nursing staff in December 2022?
24. What is your understanding of a "protected disclosure" under the Whistleblower Protection Act?
25. What is your understanding of a "Prohibited Personnel Practice" under 5 U.S.C. § 2302?
26. Are you aware that taking a personnel action against an employee *because* of their protected whistleblowing activity is illegal retaliation?
27. What was the outcome you were seeking when you reported Mr. Turnage's emails? Were you hoping to have him disciplined or removed from his position?
28. Did you participate in any discussions with other managers, such as Ms. Dill or Ms. Ward Lund, about what actions should be taken against Mr. Turnage as a result of his emails?
29. Do you believe that an employee who reports violations of federal law should be disciplined for the act of reporting itself, if management finds the manner of reporting to be inconvenient or disruptive?
30. Let's be very clear. Was your HWE complaint about the *substance* of what Mr. Turnage was reporting—that is, the violations of law—or the *manner* in which he was reporting it?
31. Please describe in detail what was improper about the *manner* of his reporting. Did he violate a specific agency policy on reporting compliance issues? If so, which one?

MEMORANDUM

TO: Case File

DATE: October 18, 2025

SUBJECT:

Analysis of HHS Performance Management Appraisal Program (PMAP) Policy Violations

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I. Introduction

This memorandum analyzes the violations of the HHS Performance Management Appraisal Program (PMAP) policies in the Turnage v. HHS case. This analysis establishes that management failed to comply with its own mandatory internal regulations for performance evaluation.

II. Analysis

- **Governing Policies:**
  - HHS Instruction 430-1 (PMAP Policy)
  - HHS PMAP Handbook
- **Key Requirements:**
  - These policies mandate a fair, thorough, and complete process for evaluating employee performance.
    - HHS Instruction 430-1,
      - Section 430-1-40(G)(4) explicitly requires Rating Officials to "Ensure that plans meet all requirements as outlined in this policy." The Handbook further emphasizes that appraisals must be based on a "complete picture" of performance.

- **Violation and Relevance:** These documents provide the official standard against which to judge the 2022 PMAP issued to Mr. Turnage. Management officials (Ward Lund, Lee, White) have admitted under oath that they issued his PMAP with an entire section missing. This is a direct, documented violation of their own policy. This procedural failure substantiates the claim that the PMAP was not a legitimate assessment but a retaliatory tool, as it demonstrates a clear lack of due care and adherence to mandatory procedure.

MEMORANDUM

TO: Case File

DATE: October 18, 2025

SUBJECT:

Analysis of HHS/IHS Grievance Procedure Violations

I. Introduction

This memorandum analyzes the violations of the HHS/IHS Grievance Procedures in the Turnage v. HHS case. This analysis establishes that management failed to follow its own mandatory process for addressing employee complaints, which demonstrates a pattern of disparate treatment.

II. Analysis

- **Governing Policies:**
  - HHS Instruction 771-1: Administrative Grievance Procedure
  - IHS Manual Chapter 7-5: Administrative Grievance System
  - **Key Requirements:** These policies create a mandatory, formal two-stage process for handling employee grievances. They guarantee employees a "thorough and meaningful review" and a final written decision, ensuring that employee concerns are officially heard and resolved.
- **Violation and Relevance:** These policies are crucial for demonstrating a pattern of disparate treatment. The record shows that management took no action on the formal hostile work environment complaint filed by Mr. Turnage and four nurses in December 2022. This failure to investigate and adjudicate is a clear violation of the grievance policies. When contrasted with the swift and severe actions taken against

Mr. Turnage based on a single, uncorroborated complaint, this violation becomes powerful evidence of retaliatory animus.

MEMORANDUM

TO: Case File

DATE: October 18, 2025

SUBJECT:

Analysis of HHS Leave Policy Violations

I. Introduction

This memorandum analyzes the violations of HHS leave policies in the Turnage v. HHS case. This analysis establishes that management misapplied federal law and agency policy regarding the placement of an employee on paid leave pending an investigation.

II. Analysis

- **Governing Policy:**
  - HHS Human Resources Policy 630-2: Absence and Leave
    - **Key Requirements:** This policy implements the Administrative Leave Act of 2016. It creates a clear distinction between general "Administrative Leave" and specific "Investigative Leave" (5 U.S.C. § 6329b), which must be used when placing an employee on leave pending an investigation. The policy defines an "investigative entity" to include supervisors and managers.
  - **Violation and Relevance:** Management's action of placing Mr. Turnage on what they called "administrative leave" pending an investigation by Mr. White was a procedural violation. According to their own policy and federal law, this should have been categorized as "Investigative Leave." This failure to use the correct leave category demonstrates either a lack of knowledge of the law or

an attempt to bypass the stricter procedural and reporting requirements associated with Investigative Leave.

MEMORANDUM

TO: Case File

DATE: October 18, 2025

SUBJECT:

Analysis of HHS Discipline and Adverse Action Policy Violations

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I. Introduction

This memorandum analyzes the violations of the HHS policy on employee discipline in the Turnage v. HHS case. This analysis establishes that the investigation used to justify adverse actions against Mr. Turnage was procedurally flawed and lacked the required objectivity.

II. Analysis

- **Governing Policy:**
  - HHS Instruction 752, Corrective Action, Discipline and Adverse Actions
    - **Key Requirements:** This instruction sets the standard for conducting inquiries into employee misconduct. Section 752-1-70(A) requires a "thorough inquiry… to ensure the objective consideration of all relevant facts."
  - **Violation and Relevance:** This policy provides the grounds to invalidate the entire "investigation" into the March 21 incident. Appointing Jason White—who had a clear conflict of interest as a subordinate of Ms. Lee (the subject of Mr. Turnage's harassment complaint)—to investigate Mr. Turnage is a flagrant violation of the duty to ensure "objective consideration." This procedural defect is strong evidence that the investigation was a pretext designed to justify a pre-determined retaliatory outcome.

MEMORANDUM

TO: Case File

DATE: October 18, 2025

SUBJECT:

Analysis of HHS Telework Policy and Its Application to Turnage v. HHS

I. Introduction

This memorandum provides a focused analysis of HHS Instruction 990-3, the agency's policy on Telework. This analysis demonstrates that while not a direct violation, the policy establishes a clear procedural standard for providing employees with reasonable notice before a significant change in their work location, a standard that management completely disregarded in Mr. Turnage's case.

II. Analysis

- **Governing Policy:** Instruction 990-3, HHS Telework, dated August 13, 2025
- **Key Requirement:** Section 990-3-100(E) of the policy explicitly states that if an employee's Telework Agreement (TA) is being terminated, the agency must provide the employee with two things:
    1. A "reasonable amount of time to arrange for daily reporting to the agency worksite."
    2. "Notification at least one full bi-weekly pay period in advance."
- **Violation and Relevance:** The decision on March 21, 2023, to place Mr. Turnage on administrative leave and immediately remove him from the premises effectively

terminated his ability to perform his duties from any location, including his approved telework site, without the required notice.

While the subsequent detail was not a formal termination of his underlying Telework Agreement, the principle established in this policy is clear: the agency recognizes that a drastic and sudden change to an employee's work location and duties requires a significant and reasonable notice period (at least two weeks).

Management's failure to provide *any* notice before escorting Mr. Turnage from the building stands in stark contrast to this established procedural safeguard. This demonstrates that their actions were not administrative and procedural, but rather punitive and retaliatory. The abrupt removal was intended to be disruptive and punishing, directly contradicting the principles of orderly, planned personnel actions outlined in the telework policy.

MEMORANDUM

TO: Case File

DATE: October 18, 2025

SUBJECT:

Analysis of Additional HR Resource Library Documents and Their Application to Turnage v. HHS

I. Introduction

This memorandum provides an analysis of additional Human Resources (HR) documents from the agency's resource library. While the primary policy violations have been detailed in separate memos, these documents provide further context and establish additional procedural standards that management failed to meet, reinforcing the themes of pretext, disparate treatment, and retaliation.

1. Analysis of Additional Documents

1. 5 CFR Part 752 - Adverse Actions

- **Document:** 5 CFR Part 752 (up to date as of 9/29/2025).
- **Key Requirements:** This Code of Federal Regulations part is the government-wide authority that underpins the agency's own policies on adverse actions (HHS Instruction 752). It establishes the minimum due process rights for federal employees, including the right to a notice period, the right to review evidence, and the right to reply. Critically, § 752.404(b)(3) outlines the limited and "rare circumstances" where an employee may be removed from the worksite during a notice period, such as posing a threat or jeopardizing government interests. * **Relevance to Case:** This regulation establishes that

removing an employee from the worksite is an exceptional step, not a routine one. Management's decision to immediately place Mr. Turnage on leave and have him escorted out based on a single, uncorroborated verbal allegation—which was later contradicted by the sole witness—fails to meet the high bar set by this regulation. Their action was not based on a credible threat but appears to be a punitive measure taken in retaliation for his protected EEO activity, making the invocation of this "rare circumstance" a pretext.

2. HIPAA/PA Fact-Finding Investigations Policy

- **Document:** Day02_Tab08_HIPAA_PAFactFindingInvestigations.pdf.
- **Key Requirements:** While this policy is specific to HIPAA and Privacy Act complaints, its opening statement reflects a broader agency principle: "It is the policy of the Aberdeen Area Indian Health Service to investigate all privacy complaints brought forth by individuals." It outlines a formal process for receiving, investigating, and responding to complaints.
- **Relevance to Case:** This document serves as further evidence of the agency's established duty to investigate formal complaints. It stands in stark contrast to management's complete failure to investigate the hostile work environment complaints filed by Mr. Turnage and four other nurses in December 2022. This demonstrates that the agency has formal investigative protocols but selectively applies them, choosing to ignore complaints filed by Mr. Turnage while aggressively pursuing complaints filed against him. This selective enforcement is strong evidence of disparate treatment and retaliatory animus.

3. HHS PMAP Implementation Guidance

- **Document:** HHS PMAP Implementation Guidance.

- **Key Requirements:** This document provides the official timeline for implementing the updated PMAP policy. It mandated that all performance plans for the 2023 appraisal period be signed by February 28, 2023.
- **Relevance to Case:** This guidance provides a hard deadline that management was required to meet. While not a central issue in the complaint, it can be used during depositions to probe the general competence and diligence of the involved supervisors. Asking whether they met this and other administrative deadlines for all their employees can help establish a pattern of either general administrative sloppiness or, more pointedly, specific failures in their handling of Mr. Turnage's case.

4. Instruction 990-3, HHS Telework

- **Document:** Instruction 990-3, HHS Telework.
- **Key Requirements:** Section 990-3-100(E) states that if a Telework Agreement (TA) is terminated, "the employee will be given a reasonable amount of time to arrange for daily reporting to the agency worksite and receive notification at least one full bi-weekly pay period in advance."
- **Relevance to Case:** The decision to place Mr. Turnage on administrative leave and immediately remove him from the premises effectively terminated his ability to perform his duties, including any telework privileges, without the required notice. While the detail is not a formal termination of his TA, the principle of providing reasonable notice before a drastic change in work location and duties is clearly established in this related policy. The agency's failure to provide any notice before escorting him from the building demonstrates that their actions were punitive and retaliatory, not administrative and procedural.

III. Conclusion

These additional documents provide further layers of evidence demonstrating management's procedural failures and disregard for established rules. They reinforce the core argument that the actions taken against Mr. Turnage were not legitimate management actions but were arbitrary, pretextual, and motivated by retaliatory animus. Each document establishes a standard of care and procedure that management violated, contributing to the overall pattern of unlawful conduct.

IV. Overall Conclusion

The collective analysis of the agency's own policies, federal regulations, and the Whistleblower Protection Act reveals a clear and consistent pattern of procedural violations and retaliatory actions by HHS/IHS management. The flawed PMAP, the failure to follow mandatory grievance procedures, the procedurally defective disciplinary investigation, and the misapplication of leave regulations are not isolated administrative errors, but a systemic failure to adhere to mandatory legal and policy standards. This pattern of non-compliance, combined with the close temporal proximity to Mr. Turnage's protected activities and the evidence of a pretextual investigation, provides compelling evidence that the adverse actions taken against him were motivated by unlawful retaliatory animus.

MEMORANDUM

TO: Case File

FROM: Kevin Turnage

DATE: October 18, 2025

SUBJECT:

Relevance of the Congressional Research Service (CRS) Report "The Whistleblower Protection Act (WPA): A Legal Overview" to Turnage v. HHS

I. Introduction

This memorandum analyzes the Congressional Research Service (CRS) report, "The Whistleblower Protection Act (WPA): A Legal Overview," (Document ID: e4dfc4bd-1de6-4738-804e-68b1ba1889cb) and outlines its direct applicability to the facts and legal theories in Mr. Turnage's case. The report provides a clear, authoritative framework that validates our core arguments and can be used to structure our legal filings and deposition strategies.

II. Key Applicable Concepts from the WPA Legal Overview

The CRS report provides a comprehensive summary of the WPA's key elements, each of which aligns directly with the facts of Mr. Turnage's case.

1. Covered Employee and Agency:

- **CRS Report Guidance:** The report confirms that the WPA's protections apply to most executive branch agencies and their employees in the competitive or excepted service (Pages 5-6).

- **Relevance to Case:** This establishes the foundational jurisdiction for a WPA claim. As an employee of the Indian Health Service, an executive agency within HHS, Mr. Turnage is a covered employee, and HHS is a covered agency.

2. Protected Disclosures and Activities:

- **CRS Report Guidance:** The report defines a "protected disclosure" as reporting information that an employee "reasonably believes evidences" a "violation of law, rule, or regulation" or "an abuse of authority" (Page 8, citing 5 U.S.C. § 2302(b)(8)). It also highlights that under 5 U.S.C. § 2302(b)(9), **exercising a complaint or grievance right** is also a protected activity (Page 5). The 2012 WPEA amendments clarified that disclosures are protected even when made to a direct supervisor (Page 9).
- **Relevance to Case:** This is directly on point. Mr. Turnage engaged in at least two clear instances of protected activity:
- **December 2022 HWE Complaint:** Reporting a hostile work environment on behalf of his nurses was a disclosure of a potential violation of law (Title VII) and an abuse of authority.
- **March 2023 Sexual Harassment Complaint:** Filing a formal sexual harassment complaint against his supervisor, Candace Lee, was both a protected disclosure under (b)(8) and the exercise of a complaint right under (b)(9).

3. Prohibited Personnel Actions:

- **CRS Report Guidance:** The report explains that the WPA prohibits taking, failing to take, or threatening to take a "personnel action" in retaliation for a protected disclosure (Page 4). As defined in 5 U.S.C. § 2302(a)(2)(A), "personnel action" explicitly includes a "detail, transfer, or reassignment" and "any other significant change in duties, responsibilities, or working conditions."

- **Relevance to Case:** The agency's actions against Mr. Turnage are classic examples of prohibited personnel actions. Being placed on administrative leave, escorted from the building by security, stripped of his supervisory duties, and punitively detailed to a non-supervisory role are all significant, adverse changes to his duties and working conditions.

4. Establishing a Retaliation Claim (The "Contributing Factor" Test):

- **CRS Report Guidance:** The report articulates the legal standard for proving a WPA claim: the employee must demonstrate that the protected disclosure was a **"contributing factor"** in the personnel action (Page 4, 17). This is a lower burden of proof than "motivating factor" or "substantial factor." Strong temporal proximity is key evidence.
- **Relevance to Case:** The timeline in Mr. Turnage's case provides exceptionally strong evidence that his protected activities were a contributing factor. The most severe personnel actions occurred on the very same day he notified his new supervisor, Brandi Benjamin, of his prior EEO activity, and just weeks after he filed the sexual harassment complaint against Ms. Lee. This close temporal proximity creates a powerful inference of a retaliatory motive.

5. Other Prohibited Personnel Practices (Obstruction):

- **CRS Report Guidance:** The WPA prohibits other actions beyond direct retaliation for disclosures. As noted in the prior analysis, 5 U.S.C. § 2302(b)(4) makes it a Prohibited Personnel Practice to "deceive or willfully obstruct any person with respect to such person's right to compete for employment." The principle of prohibiting obstruction extends to any official inquiry impacting an employee's career.
- **Relevance to Case:** The sworn testimony from Ms. Krumenacker that Jason White attempted to coerce her into signing an inaccurate witness statement is powerful

evidence of this specific prohibited practice. It demonstrates that the "investigation" was a pretext designed to create a false justification for the predetermined retaliatory action.

III. Conclusion

The WPA Legal Overview is an extremely useful resource. It serves as a concise and authoritative guide that confirms every element required to establish Mr. Turnage's whistleblower retaliation claim. It validates our legal theory, provides the precise statutory language and legal standards we must meet, and reinforces the significance of the factual evidence we have gathered, particularly the close temporal proximity and the evidence of a pretextual investigation. We can use this document to frame our arguments and ensure our deposition questions are targeted at establishing each of these necessary legal elements.